

		enforce, vacate, or modify the appealed judgment or order is suspended while the appeal is pending. (See <i>Blizzard Energy, Inc. v. Schaefers</i> (2021) 71 Cal.App.5th 832, 842, fn. 4; <i>Varian Med. Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 196-198.) Further trial court proceedings in contravention of the stay are in excess of the court's jurisdiction in its "fundamental sense" and thus void. (<i>Varian Med. Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 198-199.) Based on the lack of jurisdiction, the court DENIES the motion. This ruling is based on the assumption Respondent has otherwise perfected the appeal. For example, Respondent has not only filed the notice of appeal, but also posted any bond that is required. The court will hear from the parties on this issue at the hearing. Respondent's counsel is ordered to give notice of this ruling.
12.	Alamour vs. Regents of the University of California 2025-01492598	Before the court is the joint motion of defendants County of Orange, Regents of the University of California, City of Huntington Beach, and City of Santa Ana (collectively, Defendants) to designate case as complex. Although plaintiffs opposed Defendants' ex parte application to advance the hearing on this motion, plaintiffs have not filed any opposition to this motion. The designation of a case as complex is governed by California Rules of Court, rule 3.400, et seq. Rule 3.400(a) provides, a "'complex case' is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel." Rule 3.400(b) establishes a nonexclusive list of factors the court must consider in determining whether a case is complex. The factors include "whether the action is likely to involve: [¶] (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; [¶] (2) Management of a large number of witnesses or a substantial amount of documentary evidence; [¶] (3) Management of a large number of separately represented parties; [¶] (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or [¶] (5) Substantial postjudgment judicial supervision."

		The factors stated in rule 3.400(b) are not an exhaustive list of the factors a court must consider, nor must all the identified factors be present to deem a case complex. Rather, the court must consider the totality of the circumstances presented in the particular case and what is needed to manage and potentially try the case. The factors identified in rule 3.400(b) are simply illustrations of the type of considerations the court must evaluate and perhaps even just one of those factors could justify a complex case designation in an appropriate case. (See <i>Ford Motor Warranty Cases</i> (2017) 11 Cal.App.5th 626, 641, <i>First State Ins. Co. v. Superior Court</i> (2000) 79 Cal.App.4th 324, 332.) Rule 3.400(c) identifies the following types of claims as provisionally complex: “(1) Antitrust or trade regulation claims; [¶] (2) Construction defect claims involving many parties or structures; [¶] (3) Securities claims or investment losses involving many parties; [¶] (4) Environmental or toxic tort claims involving many parties; [¶] (5) Claims involving mass torts; [¶] (6) Claims involving class actions; or [¶] (7) Insurance coverage claims arising out of any of the claims listed in (c)(1) through (c)(6).” “With or without a hearing, the court may decide on its own motion, or on a noticed motion by any party, that a civil action is a complex case or that an action previously declared to be a complex case is not a complex case.” (Cal. Rules Ct., rule 3.403.) Here, defendant County of Orange attempted to file a counter designation with the first appearance to designate this matter as complex, but the clerk’s office erroneously rejected that filing. Although the filing of a counter-designation does not automatically result in the case being deemed complex, that filing should have been accepted, and based on that filing, the case would have been reviewed by a complex department judge to evaluate whether the case is complex. As stated above, plaintiffs have not filed any opposition to the motion and it appears they may have attempted to stipulate to the case being designated as complex. The lack of an opposition or even a stipulation does not automatically result in the case being designated complex. The court must nonetheless review and evaluate the case to determine whether the relevant criteria are satisfied regardless of the parties’ agreement.
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		This case involves claims by 12 separate plaintiffs against four governmental entities based on the actions of those entities' law enforcement officers. Although plaintiffs are represented by the same counsel, each defendant is represented by a different law firm or attorney office. The court also accepts the representation the number of defendants is likely to grow once discovery commences and plaintiffs are able to identify individual law enforcement officers who were involved in the underlying events. This case involves a variety of civil rights and other related claims concerning how law enforcement treated protestors during and after a large protest on the campus of the University of California, Irvine. All defendants have pending demurrers to the original complaint that will pose a number of novel issues and result in a series of amended pleadings and additional demurrers. These issues, pleadings, and motions will benefit from management by a judge with complex case authority. This case is likely to involve a large number of witnesses—especially given the number of plaintiffs asserting individual claims—and a large volume of documents, videos, etc. Discovery in this case will significantly benefit from the supervision of a judge with complex case authority. When this case and the foregoing factors are viewed in their entirety, the court is satisfied this case warrants a complex case designation under rule 3.400. Accordingly, the motion is GRANTED. At the time of the hearing, the court will select and assign the case to a complex judge. Defendants will be ordered to give notice of this ruling.
13.	Mann vs. Nice Sheen International, Inc. 2024-01403670	Before the court are the following motions by plaintiffs and judgment creditors Jeffrey Mann and Suzette Mann (collectively, Creditors): (1) motion for attorney fees incurred to enforce judgment, and (2) motion to compel defendant and judgment debtor Nice Sheen International, Inc. (Debtor) to respond to special interrogatories, set one, and request for monetary sanctions. <u>Motion No. 1: Motion for Attorney Fees</u> On September 25, 2024, the court entered judgment in favor of Creditors and against Debtor. (ROA 28.) Creditors state they have made multiple attempts to enforce the judgment, thereby expending additional attorney fees and costs, but have not been successful as of yet. Attorney fees and costs are recoverable when enforcing a judgment under Code of Civil Procedure sections 685.040 and 1033.5,